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STATE OF NEW HAMPSHIRE
BOARD OF MENTAL HEALTH PRACTICE
CONCORD, NEW HAMPSHIRE 03301

In the Matter of:
James Cabanel LCMHC
License #411

Docket No. 24-MHP-004

VOLUNTARY SURRENDER OF LICENSE

In order to avoid the delay and expense of further proceedings before the New Hampshire Board of Mental Health Practice ("Board"), I, James Cabanel LCMHC, per Plc 205.04, do hereby voluntarily surrender my License Clinical Mental Health Counselor license (#411) to practice as a LCMHC, effective as of the date I sign this document.

By voluntarily surrendering my license, I understand that:

1. I relinquish all rights and privileges to practice as a LCMHC in the State of New Hampshire, effective as of the date I sign this document.
2. The Board has commenced an investigation into continuing education requirements pursuant to RSA 310:9.
3. On February 2, 2024, the Commission issued an *Notice of Disciplinary Adjudicative Hearing - 04/19/2024 @ 9:30 AM*.
4. This license surrender has occurred in settlement of pending allegations that I did not meet the requirements for the last renewal period as required by Rule 402 and/or 402 et seq. As of 03/08/2024, I have retired and wound up my practice.
5. I admit to no violations of any statutes, including RSA 330-A, or any administrative rules or ethics provisions adopted by the Board.

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6. Should I again seek licensure in the State of New Hampshire, I must meet, and shall bear the burden of proving compliance with, all of the standards and prerequisites then required by the Board for new applicants.
7. Should I again seek licensure in the State of New Hampshire, the allegations in this matter shall be issues to be resolved in any future application.
8. The Board agrees that in return for my execution of this *Voluntary Surrender* the Board will not proceed with the formal adjudicatory process based upon the facts described in the *Notice of Hearing*, except as noted above.
9. Once this this document goes into effect, it will be reported as discipline and distributed to all relevant licensing authorities and professional societies in the same manner as a final decision-making specific findings of professional misconduct.
10. This document shall become a permanent part of my file and will be maintained by the Board as a public document.
11. I voluntarily submit this surrender of license to the Board and state that no promises or representations have been made to me other than those terms and conditions expressly stated herein. I understand the terms contained herein.
12. I have had the opportunity to seek and obtain the advice of an attorney of my choosing in connection with my decision to sign this document.
13. I am of sound mind and not under the influence of any substance that would impair my judgment at the time I sign this document.

[end of terms]

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FOR RESPONDENT

9/21/24
Date



James Cabanel, LCMHC #411

FOR THE BOARD*/

ACCEPTED BY THE BOARD OF MENTAL HEALTH PRACTICE on this 20 day of
September, 2024.

Date: 9/20/24



(Signature)

Deborah Robinson

(Print or Type Name)

Authorized Representative of the
New Hampshire Board of Mental Health
Practice

*/ Board members recused: